

Chair and vice-chair

170 (1) The Lieutenant Governor in Council shall appoint one member of the Board as Chair and one or more members as vice-chairs. 2006, c. 17, s. 170 (1).

Same

(2) The Chair may designate a vice-chair who shall exercise the powers and perform the duties of the Chair when the Chair is absent or unable to act. 2006, c. 17, s. 170 (2).

Chair, chief executive officer

(3) The Chair shall be the chief executive officer of the Board. 2006, c. 17, s. 170 (3).

Quorum

171 One member of the Board is sufficient to conduct a proceeding under this Act. 2006, c. 17, s. 171.

Conflict of interest

172 The members of the Board shall file with the Board a written declaration of any interests they have in residential rental property or in a non-profit housing co-operative, and shall be required to comply with any conflict of interest guidelines or rules of conduct established by the Chair. 2013, c. 3, s. 33.

▼ Section Amendments with date in force (d/m/y)

Expiry of term

173 Despite section 4.3 of the *Statutory Powers Procedure Act*, if the term of office of a member of the Board who has participated in a hearing expires before a decision is given, the term shall be deemed to continue for four weeks, but only for the purpose of participating in the decision and for no other purpose. 2006, c. 17, s. 173.

Power to determine law and fact

174 The Board has authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under this Act. 2006, c. 17, s. 174.

Members, mediators not compellable

175 No member of the Board or person employed as a mediator by the Board shall be compelled to give testimony or produce documents in a civil proceeding with respect to matters that come to his or her knowledge in the course of exercising his or her duties under this Act. 2006, c. 17, s. 175.

Rules and Guidelines Committee

176 (1) The Chair of the Board shall establish a Rules and Guidelines Committee to be composed of the Chair, as Chair of the Committee, and any other members of the Board the Chair may from time to time appoint to the Committee. 2006, c. 17, s. 176 (1).

Committee shall adopt rules

(2) The Committee shall adopt rules of practice and procedure governing the practice and procedure before the Board under the authority of this section and section 25.1 of the *Statutory Powers Procedure Act*. 2006, c. 17, s. 176 (2).

Committee may adopt guidelines

(3) The Committee may adopt non-binding guidelines to assist members in interpreting and applying this Act and the regulations made under it. 2006, c. 17, s. 176 (3).

Means of adoption

(4) The Committee shall adopt the rules and guidelines by simple majority, subject to the right of the Chair to veto the adoption of any rule or guideline. 2006, c. 17, s. 176 (4).

Make public

(5) The Board shall make its rules, guidelines and approved forms available to the public. 2006, c. 17, s. 176 (5).

Information on rights and obligations

177 (1) The Board shall provide information to landlords, tenants, non-profit housing co-operatives and members of non-profit housing co-operatives about their rights

and obligations under this Act. 2013, c. 3, s. 34.

Definition

(2) In subsection (1),

“member” has the same meaning as in Part V.1. 2013, c. 3, s. 34.

✖ Section Amendments with date in force (d/m/y)

Employees

178 Such employees as are considered necessary for the proper conduct of the affairs of the Board may be appointed under Part III of the *Public Service of Ontario Act, 2006*. 2013, c. 3, s. 35.

✖ Section Amendments with date in force (d/m/y)

Professional assistance

179 The Minister may engage persons other than members of or employees in the Board to provide professional, technical, administrative or other assistance to the Board and may establish the duties and terms of engagement and provide for the payment of the remuneration and expenses of those persons. 2013, c. 3, s. 35.

✖ Section Amendments with date in force (d/m/y)

Reports

180 The Minister may require the Board to provide reports to the Minister in addition to the annual report required by the *Adjudicative Tribunals Accountability, Governance and Appointments Act, 2009*. 2017, c. 34, Sched. 46, s. 50.

✖ Section Amendments with date in force (d/m/y)

Board may set, charge fees

181 (1) The Board, subject to the approval of the Minister, may set and charge fees,

- (a) for making an application under this Act or requesting a review of an order under section 21.2 of the *Statutory Powers Procedure Act*;
- (b) for furnishing copies of forms, notices or documents filed with or issued by the Board or otherwise in the possession of the Board; or
- (c) for other services provided by the Board. 2006, c. 17, s. 181 (1).

Same

(2) The Board may treat different kinds of applications differently in setting fees and may base fees on the number of residential units affected by an application. 2006, c. 17, s. 181 (2).

Make fees public

(3) The Board shall ensure that its fee structure is available to the public. 2006, c. 17, s. 181 (3).

Fee waiver or deferral for low-income individuals

181.1 (1) The Board may, in accordance with the Rules, waive or defer all or part of a fee charged under section 181. 2013, c. 3, s. 36.

Purpose

(2) The purpose of subsection (1) is to authorize the Board to waive or defer fees charged under section 181 for low-income individuals in appropriate circumstances. 2013, c. 3, s. 36.

▼ Section Amendments with date in force (d/m/y)

Fee refunded, review

182 A fee paid for requesting a review of an order under section 21.2 of the *Statutory Powers Procedure Act* may be refunded if, on considering the request, the Board varies, suspends or cancels the original order. 2013, c. 3, s. 37.

▼ Section Amendments with date in force (d/m/y)

Money appropriated by Legislature

182.1 The money required for the purposes of the Board shall be paid out of the money appropriated for that purpose by the Legislature. 2013, c. 3, s. 38.

▼ Section Amendments with date in force (d/m/y)

Status of money paid to Board

Revenues paid into CRF

182.2 (1) The revenues of the Board, other than money that is paid to the Board in trust under this Act, shall be paid into the Consolidated Revenue Fund. 2013, c. 3, s. 38.

Trust money to Board paid to Minister

(2) Despite Part I of the *Financial Administration Act*,

(a) the Board shall pay to the Minister money paid to the Board in trust under this Act; and

(b) the Minister may maintain in his or her name one or more accounts with an entity referred to in subsection 2 (2) of the *Financial Administration Act*, and place the money paid to the Minister under clause (a) into any of those accounts, subject to the same trusts on which the money was paid to the Board. 2013, c. 3, s. 38.

Payment out of money held in trust

(3) Where money has been paid to the Board in trust and no provision is made for paying it out elsewhere in this Act, it shall be paid out to the person entitled to receive it, together with interest at the prescribed rate. 2013, c. 3, s. 38.

Surplus interest

(4) Interest earned on money paid to the Board in trust that exceeds the interest earned at the prescribed rate vests in the Crown and shall be deposited in the Consolidated Revenue Fund. 2013, c. 3, s. 38.

No liability re interest above prescribed rate

(5) No claim shall be made for or on account of interest earned on money paid to the Board in trust under this Act that exceeds the interest earned on that money at the prescribed rate. 2013, c. 3, s. 38.

Definition

(6) In this section,

“money paid to the Board in trust” does not include fines, fees or costs paid to the Board. 2013, c. 3, s. 38.

▼ Section Amendments with date in force (d/m/y)

Delegation of powers

182.3 (1) Any power conferred on the Minister under section 179 or 182.2 may be delegated by the Minister to the Chair or to a public servant employed under Part III of the *Public Service of Ontario Act, 2006* and, when purporting to exercise a delegated power, the delegate shall be presumed conclusively to act in accordance with the delegation. 2013, c. 3, s. 38.

Subject to conditions, etc.

(2) A delegation under subsection (1) shall be in writing and may be subject to such limitations, conditions and requirements as are set out in it. 2013, c. 3, s. 38.

Subdelegation

(3) In a delegation under subsection (1), the Minister may authorize a person to whom a power is delegated to delegate to others the exercise of the delegated power, subject to such limitations, conditions and requirements as the person may impose. 2013, c. 3, s. 38.

Deeds and contracts

(4) Despite section 6 of the *Executive Council Act*, a deed or contract signed by a person empowered to do so under a delegation or subdelegation made under this section has the same effect as if signed by the Minister. 2013, c. 3, s. 38.

▼ Section Amendments with date in force (d/m/y)

PART XII

BOARD PROCEEDINGS

Definitions

182.4 In this Part, “housing charges”, “member” and “regular monthly housing charges” have the same meanings as in Part V.1. 2013, c. 3, s. 39.

▼ Section Amendments with date in force (d/m/y)

Expeditious procedures

183 The Board shall adopt the most expeditious method of determining the questions arising in a proceeding that affords to all persons directly affected by the proceeding an adequate opportunity to know the issues and be heard on the matter. 2006, c. 17, s. 183.

SPPA applies

184 (1) The *Statutory Powers Procedure Act* applies with respect to all proceedings before the Board. 2006, c. 17, s. 184 (1).

Exception

(2) Subsection 5.1 (2) of the *Statutory Powers Procedure Act* does not apply with respect to an application under section 132 or 133 or an application solely under paragraph 1 of subsection 126 (1). 2006, c. 17, s. 184 (2).

Exception

(3) Subsection 5.1 (3) of the *Statutory Powers Procedure Act* does not apply to an application under section 126, 132 or 133. 2006, c. 17, s. 184 (3).

Form of application

185 (1) An application shall be filed with the Board in the form approved by the Board, shall be accompanied by the prescribed information and shall be signed by the

applicant. 2006, c. 17, s. 185 (1).

Application filed by representative

(2) An applicant may give written authorization to sign an application to a person representing the applicant under the authority of the *Law Society Act* and, if the applicant does so, the Board may require such representative to file a copy of the authorization. 2006, c. 17, s. 261 (3).

▼ Section Amendments with date in force (d/m/y)

Combining applications

186 (1) A tenant may combine several applications into one application. 2006, c. 17, s. 186 (1).

Same

(2) Two or more tenants of a residential complex may together file an application that may be filed by a tenant if each tenant applying in the application signs it. 2006, c. 17, s. 186 (2).

Same

(3) A landlord or a non-profit housing co-operative may combine several applications relating to a given tenant or member into one application, but a landlord may not combine an application for a rent increase with any other application. 2013, c. 3, s. 40.

▼ Section Amendments with date in force (d/m/y)

Parties

187 (1) The parties to an application are the landlord, or the non-profit housing co-operative, and any tenants, or members of the non-profit housing co-operative, or other persons directly affected by the application. 2013, c. 3, s. 41.

Add or remove parties

(2) The Board may add or remove parties as the Board considers appropriate. 2013,

c. 3, s. 41.

▼ Section Amendments with date in force (d/m/y)

Notice by Board

188 (1) The Board shall do the following with respect to an application made to the Board:

1. Give the parties other than the applicant a copy of the application within the time set out in the Rules.
2. In such circumstances as may be prescribed, give the prescribed parties such documents or information as may be prescribed. 2011, c. 6, Sched. 3, s. 1.

Exception

(2) This section does not apply with respect to an application that can be made without notice. 2011, c. 6, Sched. 3, s. 1.

▼ Section Amendments with date in force (d/m/y)

Notice from applicant

189 (1) Instead of doing what would otherwise be required under paragraph 1 of subsection 188 (1), the Board may, in the circumstances set out in the Rules, order the applicant to give a copy of the application to the other parties. 2011, c. 6, Sched. 3, s. 1.

Same

(2) Despite the *Statutory Powers Procedure Act*, the Board may, in the circumstances set out in the Rules, order the applicant to give a copy of any notice of hearing issued by the Board to the other parties. 2011, c. 6, Sched. 3, s. 1.

Certificate of service

(3) Where an order is made under subsection (1) or (2), the applicant shall, in the circumstances set out in the Rules, file with the Board a certificate of service in the form approved by the Board. 2011, c. 6, Sched. 3, s. 1.

▼ Section Amendments with date in force (d/m/y)

Application under s. 87, 88.1, 88.2 or 89

189.0.1 (1) This section applies with respect to an application under subsection 87 (1) or (3), 88.1 (1), 88.2 (1) or 89 (1) if, at the time the application is made, the tenant or former tenant who is a party to the application is no longer in possession of the rental unit. 2020, c. 16, Sched. 4, s. 28.

Notice from applicant

(2) The applicant shall, within the time set out in the Rules, give the tenant or former tenant,

(a) a copy of the application; and

(b) a copy of any notice of hearing issued by the Board in respect of the application. 2020, c. 16, Sched. 4, s. 28.

Certificate of service

(3) The applicant shall, in the circumstances set out in the Rules, file with the Board a certificate of service on the tenant or former tenant in the form approved by the Board. 2020, c. 16, Sched. 4, s. 28.

Application

(4) If this section applies with respect to an application,

(a) paragraph 1 of subsection 188 (1) and section 189 do not apply with respect to the tenant or former tenant; and

(b) clause (2) (b) applies despite the *Statutory Powers Procedure Act*. 2020, c. 16, Sched. 4, s. 28.

▼ Section Amendments with date in force (d/m/y)

Application under s. 226

189.1 (1) For an application to the Board under section 226 for the review of a work